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SUPERIOR COURT SAN JOAQUIN
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STEPHANIE BOHRER, CLERK
DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN JOAQUIN

STK-CV-UF-2026-1094

BRENDAN NGWA NFORBI, Plaintiff(s), vs. DIAMOND TRUCK SALES, INC., a California corporation; and DOES 1 through 20, inclusive, Defendant(s).	Case No.: **COMPLAINT FOR:** **(1) FRAUDULENT CONCEALMENT** **(2) INTENTIONAL MISREPRESENTATION** **(3) NEGLIGENT MISREPRESENTATION** **(4) BREACH OF CONTRACT** **(5) VIOLATION OF UNFAIR COMPETITION LAW (Bus. & Prof. Code § 17200)** **(6) RESCISSION AND RESTITUTION** **(7) DECLARATORY RELIEF** **DEMAND FOR JURY TRIAL**

Plaintiff Brendan Ngwa Nforbi ("Plaintiff") alleges as follows against Defendant Diamond Truck Sales, Inc. ("Diamond" or "Defendant") and Does 1 through 20:

I. PARTIES

Plaintiff BRENDAN NGWA NFORBI ("Plaintiff") is an individual residing in Stockton, California, San Joaquin County.

Defendant DIAMOND TRUCK SALES, INC. ("Diamond") is a California corporation engaged in the business of selling commercial trucks, with locations including 480 Peachoid Road, Gaffney, South Carolina 29341; 1201 South Soderquist Road, Turlock, California 95380; 7156

Goldenstate Highway, Bakersfield, California 93308; and 5201 Bridge Street, Fort Worth, Texas 76103.

The true names and capacities of Defendants sued as DOES 1 through 20 are unknown to Plaintiff, who therefore sues said Defendants by fictitious names. Plaintiff will amend this Complaint to show the true names and capacities when ascertained. Plaintiff is informed and believes, and on that basis alleges, that each fictitiously named Defendant is legally responsible for the events and damages described herein.

II. JURISDICTION AND VENUE

This Court has jurisdiction pursuant to Code of Civil Procedure section 410.10. The amount in controversy exceeds $25,000, exclusive of interest and costs.

Venue is proper in San Joaquin County because Plaintiff resides in this County, the Truck was garaged and intended for operation here, Plaintiff's injuries were suffered here, and Defendant conducts business in California giving rise to the claims alleged herein.

III. INTRODUCTION

This action arises from Defendant's sale of a commercial diesel semi-truck that was not fit for lawful operation in California and suffered from material, undisclosed emissions defects at the time of sale.

Defendant knowingly sold a vehicle into California commerce that had been previously rendered inoperable by a California enforcement agency due to emissions and/or safety non-compliance, and concealed these material facts from Plaintiff to induce his purchase.

On or about April 4, 2023, Plaintiff purchased a 2014 Volvo VNL diesel semi-truck, VIN 4V4NC9EH6EN142206 (the "Truck"), from Diamond for use in commercial freight operations based in California. The purchase price was $26,900.00, with total charges of $27,092.75. At the time of sale, Diamond failed to disclose that the Truck suffered from a severe Diesel Exhaust Fluid

("DEF") and emissions system defect affecting the selective catalytic reduction ("SCR") system, which rendered the Truck non-compliant with California emissions regulations and unsafe for highway operation.

On information and belief, the prior owner of the Truck expressly disclosed this DEF/ emissions defect to Diamond before Diamond resold the Truck to Plaintiff. Plaintiff is informed and believes that prior to Plaintiff's purchase, the prior owner provided Diamond with written and/or verbal notice of the DEF system failure and engine derate condition. Discovery is expected to confirm this. Despite this actual knowledge, Diamond sold the Truck to Plaintiff without disclosing its non-compliant condition.

On information and belief, at or around the time Diamond acquired the Truck and/or Plaintiff's purchase, a California enforcement agency had cited or placed an out-of-service order on the Truck for emissions or safety violations. Plaintiff is investigating the precise nature of this designation and will amend once confirmed. This regulatory determination was not disclosed to Plaintiff.

Shortly after purchase, while Plaintiff was operating the Truck on a commercial route under a Lease-On Owner Operator Agreement, the Truck experienced a catastrophic emissions failure, entered engine derate ("limp mode"), emitted excessive black smoke, and became incapable of exceeding approximately 35 miles per hour, rendering it commercially unusable and unsafe for highway operation.

Plaintiff incurred substantial economic losses, including purchase funds and down payment exceeding $12,000, regulatory and registration fees exceeding $3,400, financing-related charges and payments, towing and attempted repair costs, storage and insurance expenses, and lost business opportunities and freight income.

IV. FACTUAL ALLEGATIONS

A. The Purchase Transaction

On or about April 4, 2023, Plaintiff purchased the Truck from Diamond for a cash price of $26,900.00, with total charges of $27,092.75, as reflected in the Retail Buyer's Order executed at that time.

Plaintiff paid a down payment exceeding $12,000 to Diamond, with the remaining balance financed through a third-party lender selected, arranged, or facilitated by Diamond in connection with the Truck's sale.

Diamond knew or reasonably should have known that the Truck was being purchased for commercial operation involving California, where emissions compliance is mandatory for lawful operation of heavy-duty diesel vehicles.

As part of the transaction, Plaintiff executed a Power of Attorney authorizing Diamond and its employees to act on Plaintiff's behalf with the California Department of Motor Vehicles for purposes of titling and registration of the Truck. This document was notarized in San Joaquin County, California.

B. Undisclosed Emissions Defect and Regulatory Non-Compliance

At the time of sale, the Truck suffered from a serious DEF/emissions system defect affecting the SCR system, resulting in excessive emissions, engine derate, loss of power, and entry into limp mode.

This defect rendered the Truck non-compliant with California emissions requirements for heavy-duty diesel vehicles, including regulations enforced by the California Air Resources Board and California Code of Regulations, title 13, section 2025 (Truck and Bus Regulation), preventing its lawful registration and operation in the state.

On information and belief, the emissions defect existed prior to Plaintiff's purchase and was

known or should have been known to Diamond before resale. Plaintiff is informed and believes that prior to Plaintiff's purchase, the prior owner provided Diamond with written and/or verbal notice of the DEF system failure and engine derate condition. Discovery is expected to confirm this.

On information and belief, at or around the time Diamond acquired the Truck and/or Plaintiff's purchase, a California enforcement agency had cited or placed an out-of-service order on the Truck for emissions or safety violations. Plaintiff is investigating the precise nature of this designation and will amend once confirmed. This regulatory determination provided Diamond with notice of the Truck's unlawful condition.

Diamond did not disclose the emissions defect, the Truck's regulatory non-compliance, the prior owner's disclosures, or any enforcement agency inoperable or out-of-service designation to Plaintiff. The emissions defect and enforcement designation were facts exclusively within Diamond's knowledge and not ascertainable by Plaintiff through reasonable inspection or publicly available records at the time of sale.

A heavy-duty diesel vehicle that cannot meet California emissions requirements cannot lawfully operate in this state. Defendant had a statutory duty under California Vehicle Code section 24007 not to sell a vehicle that does not comply with the Health and Safety Code provisions regarding emissions. This statutory duty overrides any contractual "As-Is" disclaimers. Plaintiff would not have purchased the Truck had the true facts been disclosed.

C. Mechanical Failure and Resulting Harm

Shortly after purchase, while operating the Truck on a commercial route under Plaintiff's Lease-On Owner Operator Agreement, the Truck experienced a severe emissions failure.

The Truck entered limp mode, emitted black smoke, and became incapable of safe highway operation, being unable to exceed approximately 35 miles per hour. This failure pattern is consistent with the DEF/SCR/emissions system defect described above.

The Truck was rendered commercially unusable and unsafe, resulting in immediate and continuing economic losses to Plaintiff. Due to the immediate financial losses and capital depletion caused by Defendant's conduct, Plaintiff was unable to procure a replacement commercial vehicle.

Plaintiff's documented economic losses include, without limitation:

(a) A $12,345.10 deposit paid under the Retail Buyer's Order;

(b) A $1,895.00 GAP enrollment charge under the GAP addendum;

(c) DMV and registration fees totaling $3,442.00 as reflected in the DMV receipt;

(d) Towing and repair costs, including $1,197.34 paid to Brannon Tire, $450.00 paid to Golden Empire Towing, $800.00 paid to Mobile Will's Repair, and $5,000.00 paid to Almaraz Diesel Repairs;

(e) Additional storage, insurance, and related expenses associated with the Truck.

The subtotal of Plaintiff's documented direct economic losses from the deposit, GAP enrollment, DMV fees, and the above repair and towing charges is approximately $25,129.44, exclusive of lost income and interest.

At the time of purchase, Plaintiff had secured or was actively pursuing hauling contracts, including through Amazon Relay, and reasonably projected net weekly earnings of approximately $1,800. Due to the Truck's failure, Plaintiff was unable to perform under those arrangements and lost that income. Plaintiff has suffered lost net commercial income of not less than $46,800 to date, with continuing losses according to proof.

Plaintiff was unable to mitigate these losses by renting or purchasing a replacement vehicle because his available capital was exhausted by the down payment and repair costs for the subject Truck.

V. CAUSES OF ACTION

FIRST CAUSE OF ACTION

(Fraudulent Concealment - Against All Defendants)

Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

Diamond concealed and failed to disclose material facts regarding the Truck's emissions defect and regulatory non-compliance, including the prior owner's disclosure of DEF/emissions issues and the enforcement agency inoperable or out-of-service determination.

Diamond had actual and superior knowledge of these facts and a duty to disclose them to Plaintiff before inducing his purchase of the Truck. The emissions defect and regulatory non-compliance were not reasonably discoverable by Plaintiff through ordinary inspection at the time of sale. Diamond possessed superior knowledge of facts not accessible to Plaintiff through reasonable inspection or publicly available records. (See Warner Constr. Corp. v. City of Los Angeles (1970) 2 Cal.3d 285 [duty to disclose in sales transactions]; Civ. Code, § 1710.)

Diamond intentionally concealed these facts with the intent to induce Plaintiff to purchase the Truck and to pay funds in reliance on the belief that it was lawful and fit for commercial operation in California.

Plaintiff reasonably relied on Diamond's concealment and would not have purchased the Truck, or would have paid substantially less and on different terms, had the true facts been disclosed.

As a direct and proximate result of Diamond's fraudulent concealment, Plaintiff suffered damages according to proof at trial.

The names of the specific agents of Diamond who participated in the concealment are known to Defendant but unknown to Plaintiff at this time. Plaintiff is informed and believes, and thereon

alleges, that Diamond's agents, including the salesperson and/or finance manager who facilitated the April 4, 2023 transaction, acted within the course and scope of their employment in concealing the material facts described herein.

Defendant's conduct was intentional, malicious, and oppressive, done with a willful and conscious disregard of Plaintiff's rights, justifying an award of punitive and exemplary damages pursuant to Civil Code section 3294.

SECOND CAUSE OF ACTION

(Intentional Misrepresentation - Against All Defendants)

Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

Diamond represented, expressly and by omission, that the Truck was fit for commercial operation and lawful for use in California.

These representations were false and were known by Diamond to be false at the time they were made, because Diamond knew of the DEF/emissions defect, the Truck's non-compliance with California emissions regulations, and the enforcement agency inoperable or out-of-service determination.

Diamond intended that Plaintiff rely on these representations in deciding to purchase the Truck.

Plaintiff reasonably relied on Diamond's representations and, as a direct and proximate result, suffered damages in an amount to be proven at trial.

Defendant's conduct was intentional, malicious, and oppressive, done with a willful and conscious disregard of Plaintiff's rights, justifying an award of punitive and exemplary damages pursuant to Civil Code section 3294.

THIRD CAUSE OF ACTION

(Negligent Misrepresentation - Against All Defendants)

Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

In the alternative, Diamond made representations regarding the Truck's condition, emissions compliance, and fitness for commercial use without reasonable grounds for believing them to be true.

Diamond owed Plaintiff a duty to exercise reasonable care in making representations concerning the Truck's condition and regulatory status. (See Bily v. Arthur Young & Co. (1992) 3 Cal.4th 370.)

Plaintiff reasonably relied on Diamond's representations to his detriment and suffered damages as a result.

FOURTH CAUSE OF ACTION

(Breach of Contract - Against Defendant Diamond)

Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

Plaintiff and Diamond entered into a written purchase agreement and related sales documents for the Truck, including the Retail Buyer's Order executed on or about April 4, 2023, reflecting a purchase price of $26,900.00, VIN 4V4NC9EH6EN142206, and total charges of $27,092.75.

Diamond breached the contract by delivering a vehicle that was not fit for its ordinary commercial purpose and could not lawfully be operated in California, contrary to the implied and reasonably understood terms of the parties' agreement.

Plaintiff performed all conditions required of him under the agreement, including payment of the down payment and execution of necessary paperwork, or his performance was excused.

As a direct and proximate result of Diamond's breach, Plaintiff suffered damages in an amount to be proven at trial.

Plaintiff is entitled to prejudgment interest on his liquidated economic losses at the legal rate from the date of loss pursuant to Civil Code section 3287, subdivision (a).

FIFTH CAUSE OF ACTION

(Violation of Unfair Competition Law, Bus. & Prof. Code § 17200 - Against All Defendants)

Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

Diamond engaged in unlawful, unfair, and fraudulent business practices by selling a non-compliant commercial vehicle into California commerce while concealing its emissions defect, regulatory non-compliance, and prior enforcement agency inoperable or out-of-service status.

Diamond's conduct was unlawful in that it violated California emissions regulations, including California Code of Regulations, title 13, section 2020 (emissions compliance requirements), California Vehicle Code section 24007 (dealer duty to ensure vehicle meets emissions standards at sale), and Health and Safety Code section 43000 et seq. (motor vehicle emissions standards), and constituted fraud and deceit under California law. Selling a vehicle with a non-functional emissions system violates federal and state environmental laws, including the Federal Clean Air Act, making Diamond's business practice unlawful per se.

Diamond's conduct was unfair because it caused substantial injury to Plaintiff that he could not reasonably avoid and that is not outweighed by any countervailing benefits to consumers or competition. (See Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163.)

Diamond's conduct was fraudulent because it was likely to deceive reasonable consumers, including Plaintiff, into believing they were purchasing a truck that could lawfully operate in

California.

As a result of Diamond's violations of Business and Professions Code section 17200 et seq., Plaintiff suffered economic injury and seeks restitution, disgorgement, injunctive relief, and all other relief permitted by statute.

SIXTH CAUSE OF ACTION

(Rescission and Restitution - Against Defendant Diamond)

Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

Diamond's fraud, concealment, and misrepresentations entitle Plaintiff to rescind the Truck purchase transaction pursuant to Civil Code section 1689, subdivision (b)(1) (fraud) and subdivision (b)(5) (failure of consideration).

Plaintiff seeks restitution of all monies paid in connection with the transaction, including but not limited to the down payment, financed amounts paid to date, registration and DMV fees, exemption-related expenses, towing and repair costs, storage and insurance, and other out-of-pocket costs.

Money damages alone cannot fully restore the parties to their pre-contract positions or unwind the transaction, and Plaintiff therefore seeks rescission together with restitution of all amounts paid.

SEVENTH CAUSE OF ACTION

(Declaratory Relief - Against All Defendants)

Plaintiff re-alleges and incorporates by reference each and every paragraph above as though fully set forth herein.

An actual controversy exists between Plaintiff and Diamond concerning their respective rights and obligations arising from the Truck purchase transaction. (Code Civ. Proc., § 1060.)

Plaintiff contends that the purchase agreement is voidable and unenforceable due to Diamond's fraudulent conduct and material non-disclosures, and that Plaintiff is entitled to rescind the transaction and recover all consideration paid. Diamond disputes, or is expected to dispute, these contentions.

In the alternative, and to the extent this cause of action is duplicative of the Sixth Cause of Action for Rescission and Restitution, Plaintiff pleads this cause of action as an alternative form of relief. Plaintiff seeks a judicial declaration that the purchase agreement is voidable, that Plaintiff is entitled to rescind the transaction, and that Diamond must return all consideration paid in connection with the Truck's purchase.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendant Diamond Truck Sales, Inc. and Does 1 through 20 as follows:

A. For rescission of the vehicle purchase transaction;

B. For restitution of all monies paid, including down payment, financed amounts paid to date, registration and DMV fees, exemption-related fees, and related costs;

C. For compensatory damages according to proof at trial;

D. For consequential damages, including lost business income and opportunities;

E. For punitive and exemplary damages according to proof pursuant to Civil Code section 3294;

F. For disgorgement and restitution under the Unfair Competition Law;

G. For costs of suit incurred herein;

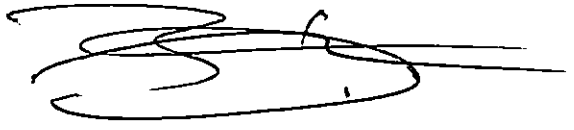
H. For prejudgment interest on liquidated damages from the date of Plaintiff's out-of-pocket expenditures pursuant to Civil Code section 3287, subdivision (a), and post-judgment interest as permitted by law;

I. For such other and further relief as the Court deems just and proper.

VII. DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable.

DATED: February 13, 2026



BRENDAN NGWA NFORBI

Plaintiff, In Pro Per

1455 Cat Tail Drive

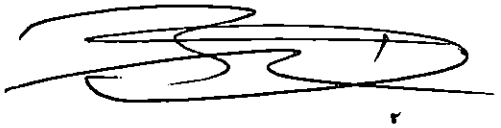
Stockton, CA 95204

Telephone: (209) 801-4442

VERIFICATION

I, Brendan Ngwa Nforbi, am the Plaintiff in this action. I have read the foregoing Complaint and know the contents thereof. The matters stated therein are true of my own knowledge, except as to those matters stated on information and belief, and as to those matters, I believe them to be true.

DATED: February 12, 2026



BRENDAN NGWA NFORBI